



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00098-01-01 / Saddle Ridge, 18th Filing Zone Change
Date: May 9, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their May 2, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has only been changed as follows:

- Correction of a future land use map designation (original document stated "Industrial" in a location where it should have listed "Urban Residential")

Related Items:

- Saddle Ridge 18th Filing, Annexation (UDC-22-00098-01)
- Saddle Ridge 18th Filing, Final Plat (UDC-22-00098)
(Anticipated for introduction on 5/23/2022)

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY A1 AGRICULTURAL AND RURAL RESIDENTIAL TO MR MEDIUM-DENSITY RESIDENTIAL FOR LAND LOCATED NORTHWEST OF THE INTERSECTION OF CHRISTENSEN ROAD AND PERSHING BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on May 2, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the north right of way of Pershing Boulevard from which the E $\frac{1}{4}$ corner of Section 25, T.14N., R.66W., of the 6th P.M., bears N35°18'49"E, a distance of 678.48 feet (said point of beginning, being the SE corner of Lot 11, Block 3, Saddle Ridge 16th Filing); thence S65°53'48"W, a distance of 429.10 feet along the northerly right of way of Pershing Boulevard to the east line of Section 25; thence along the east line of Section 25, N00°07'48"E, a distance of 488.12 feet to the E $\frac{1}{4}$ corner of Section 25; thence continuing along the east line of Section 25, N00°04'11"E, a distance of 1322.22 feet to a point; thence N89°58'11"W, a distance of 1588.16 feet to a point on the east line of Saddle Ridge 13th Filing; thence along, the easterly line of Saddle Ridge 13th Filing for the following 19 courses; thence S00°07'26"W, a distance of 249.40 feet; thence 254.78 feet on a curve to left, through an angle of 41°37'46", having a radius of 350.66 feet, and whose long chord bears S20°41'27"E, a distance of 249.21 feet to a point; thence S39°48'12"E, a distance of 93.88 feet; thence S50°11'48"W, a distance of 120.00 feet; thence S39°48'12"E, a distance of 170.00 feet; thence N50°11'48"E, a distance of 140.00 feet; thence S39°48'12"E, a distance of 52.43 feet; thence 839.15 feet on a curve to the right, through an angle of 129°56'34", having a radius of 370.00 feet, and whose long chord bears S25°10'05"W, a distance of 670.51 feet to a point; thence N89°51'38"W, a distance of 245.13 feet; thence S00°08'22"W, a distance of 60.00 feet; thence 31.42 feet on a curve to the left, through an angle of 90°00'00", having a radius of 20.00 feet, and whose long chord bears S44°51'38"E, a distance of 28.28 feet to a point; thence S89°51'38"E, a distance of 111.54 feet; thence 239.29 feet on a curve the right, through an angle of 31°53'04", having a radius of 430.00 feet, and whose long chord bears S73°55'06"E, a distance of 236.21 feet to a point; thence S57°58'35"E, a distance of 238.13 feet; thence 215.41 feet on a curve to the left, through an angle of 56°05'59", having a radius of 220.00 feet, and whose long chord bears S86°01'34"E, a distance of 206.91 feet to a point; thence N65°55'27"E, a distance of 19.65 feet; thence 23.00 feet on a curve to the left,

through an angle of 65°53'23", having a radius of 20.00 feet, and whose long chord bears N32°58'45"E, a distance of 21.75 feet to a point; thence N00°02'04"E, a distance of 21.52 feet; thence N68°52'12"E, a distance of 64.34 feet; thence 39.83 feet along a curve to the left, through an angle of 114°06'37", having a radius of 20.00 feet, and whose long chord bears S57°01'15"E, a distance of 33.57 feet to a point; thence along the north line of Saddle Ridge 16th Filing, N65°55'27"E, a distance of 361.65 feet to the northeast corner of Saddle Ridge 16th Filing; thence along the east line of Saddle Ridge 16th Filing, S24°04'33"E, a distance of 332.00 feet; thence continuing along the east line of Saddle Ridge 16th Filing S65°55'27"W, a distance of 6.00 feet; thence continuing along the east line of Saddle Ridge 16th Filing, S24°04'33"E, a distance of 181.84 feet to the point of beginning. Containing 53.49 acres more or less.

is hereby changed to MR Medium-density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval, publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

MAY 2, 2022

STAFF REPORT

FILE: UDC-22-00098-01-01: Saddle Ridge 18th Filing – Zoning Map Amendment (assigning a City zone to annexed land)

REQUEST: A request to rezone approximately 53.5 acres of land from County A-1 Agricultural and Rural Residential to City MR Medium-density Residential

LOCATION: Northwest of the intersection of Christensen Road and Pershing Boulevard

APPLICANT: WJE, LLC

AGENT: John Sayers

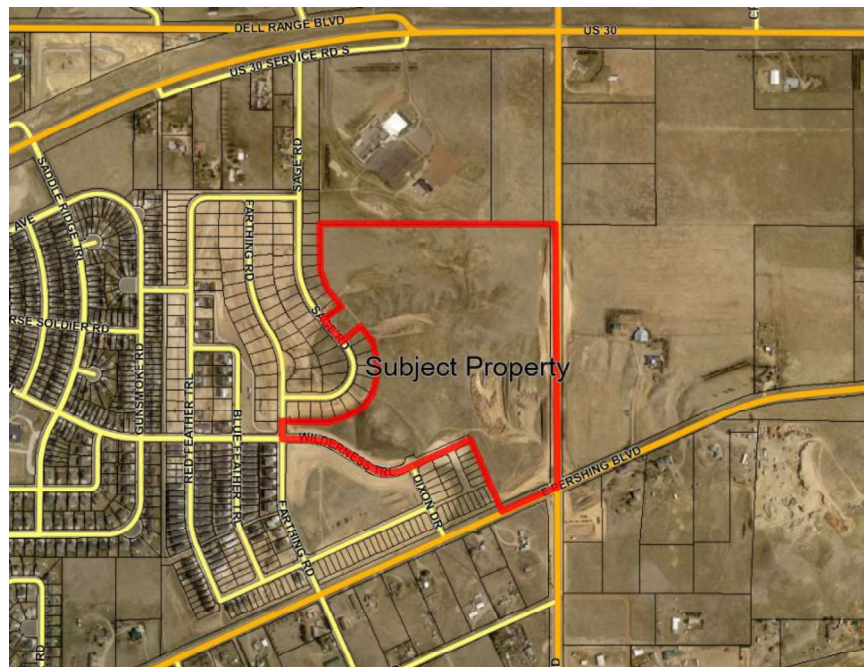
OWNER: WJE, LLC

ZONING: County A-1 Agricultural and Rural Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To give a City zone to annexed land for future residential development

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the east half of Section 25, Township 14 North, Range 66 West, of the 6th Principal Meridian to MR as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County A-1 to City MR for 53.5 acres of land, concurrent with an annexation. The assignment of a City zone is necessary to establish the regulation of annexed property.

The land is undeveloped. The impetus behind the annexation and zone change is to develop the property with a suburban, single-family residential development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	County A-1 Agricultural and Rural Residential	Vacant
North	Mixed-use Residential, Mixed-use Commercial	County A-1	Assembly, Vacant
South	Urban Residential	P Public, MR Medium-density Residential, County AR Agricultural Residential	Single-family residential, rural residential, vacant
East	Urban Residential	County A-2 Agricultural	Rural residential
West	Urban Residential	MR	Single-family residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) **The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)**

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is very close to the Urban Service Boundary. Infrastructure will need to be extended to service the property.

The Future Land Use Designation for this property is Urban Residential. Surrounding areas to the east, west, and south are all designated Urban Residential. According to comprehensive plan, the optimal City zones for the subject property's future land use designation include most of the residential zones, including MR.

Areas designated Urban Residential are anticipated to develop with a broad range of housing types, and in newly developing areas of the community, some commercial uses are appropriate. Development is anticipated to be at an urban or suburban character with full access to urban services.

The policies and future land use map of PlanCheyenne are supportive of this proposed zone assignment.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

Surrounding property in the County is zoned various levels of agricultural. The land outside of City limits to the south and east are also separated from the subject property by major transportation corridors. The property to the north is occupied with a church. The adjacent properties within City limits are MR and P. The P zone is anticipated to develop with a school, and the MR zoned areas are anticipated in a way similar to the proposed use of the subject property.

This proposed zone change would allow this parcel to develop in a way similar to adjacent City-jurisdiction property. The proposed zoning is also compatible with the future land use designations on nearby property.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The property currently has a County zone, but in order to develop within the City, a City zone is required. The proposed MR zone would allow a variety of residential uses.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The subject property is large enough that subdivision of the property, including public streets. The property will be required to provide connections to the existing street network and at least one stub out to the property to the north. A concurrent plat has been submitted with this zone change, demonstrating (in principle) the ability for this property to meet the standards of Article 4 for the MR Medium-density Residential zone.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The MR Medium-density Residential zone is intended to develop with a mix of dwelling types in a more suburban residential development pattern. The zone district is appropriate in areas designated Urban Residential by the future land use plan.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The proposed zone district is MR Medium-density residential, for a large acreage of land which is anticipated to be subdivided prior to construction. Should the specific subdivision proposed in concert with this zone change not be executed, the MR zone would allow a variety of residential uses and there is sufficient land to create other types of subdivision.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MR zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

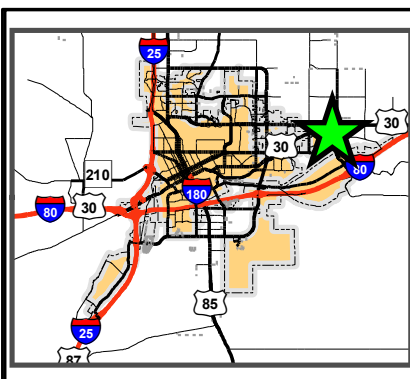
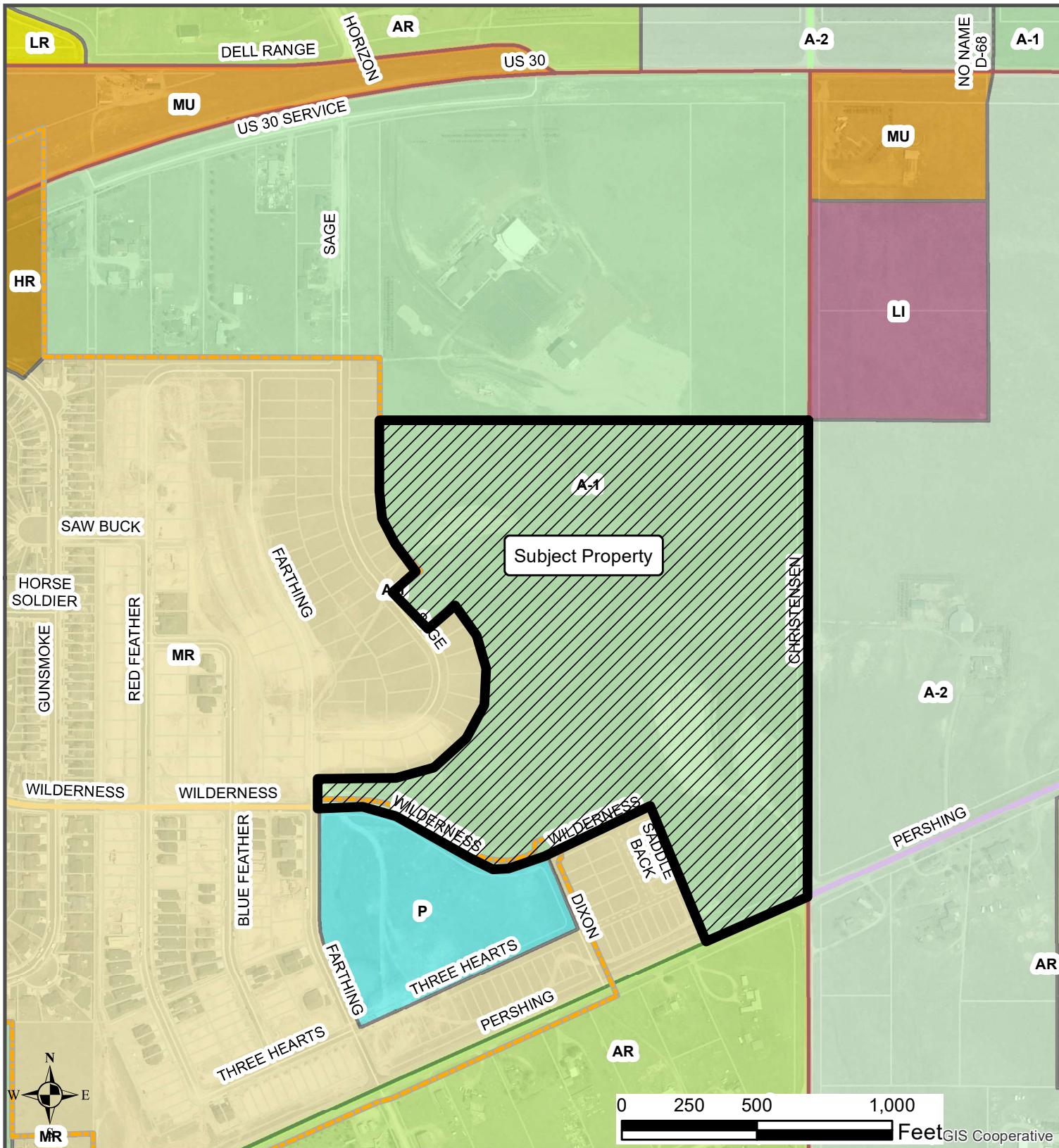
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County A-1 to City MR.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

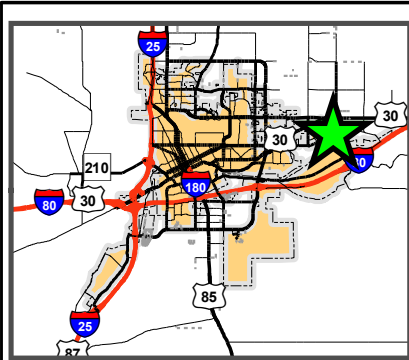
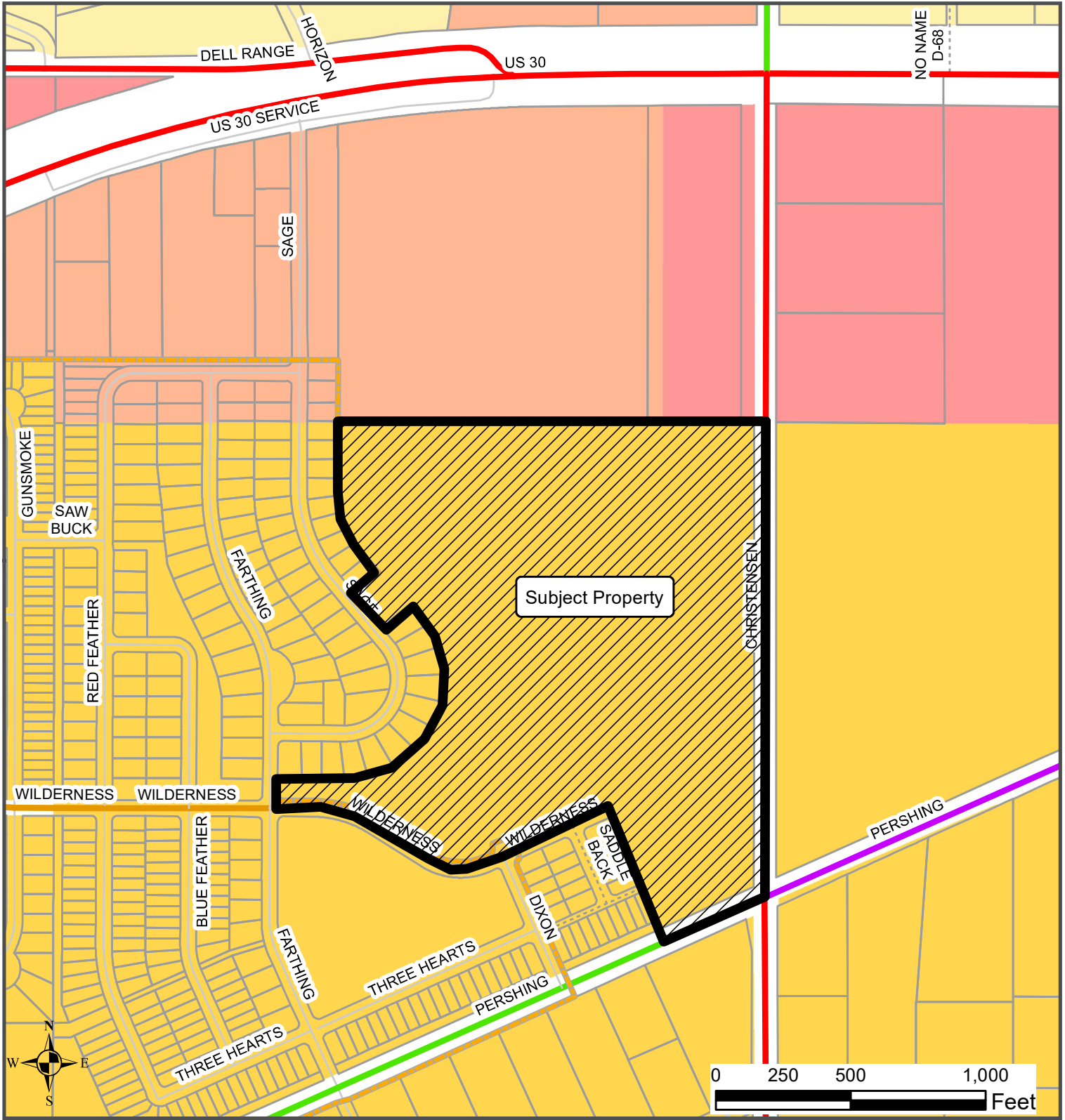


Attachment 1: Zoning Map UDC-22-00098

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00098

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Private		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **23 March 2022, 8:22AM**

Receipt number: **29**

Related form version: **10**

General Information

Applicant Name: **WJE, LLC**

Applicant Address: **506 Shoshoni Street**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **307-634-8400**

Applicant Email: **johns@edwardsdevelopment.com**

Representative Name: **John Sayers**

Representative Address: **506 Shoshoni Street**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **307-634-8800 x102**

Representative Email: **johns@edwardsdevelopment.com**

Owner Name: **WJE, LLC**

Owner Address: **506 Shohoni Street**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82009
Owner Phone:	307-634-8400
Owner Email:	johns@edwardsdevelopment.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	signed letter of authorization.pdf
Project Location (Street Address or General Location):	West of Christensen Road and North of Perhing Boulevard and south of Cheyenne Hills Church
Assessor's Parcel ID number(s)	14662510001900
Total Project Area	53.52 Acres
Existing Zoning	Other: A-1
Requested Zoning	MR - Medium-density Residential

Application-Specific Questions

Written Statement	Please describe your proposal here:
Zoning Map	ZONE CHANGE_18TH FILING-ZONE CHANGE.pdf
Notification Letter	Adjacent Letter neighbors.csv Ltr to adjacent Land Owners.pdf
Supporting Documents / Information	PP_SR 18TH FILING-PP_1.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: John Sayers

A stylized, handwritten signature in black ink, consisting of several overlapping loops and a long horizontal stroke extending to the right.

[Link to signature](#)

Please enter an email address for an email receipt.

johns@edwardsdevelopment.com

